

WHO'S BEHIND IT

The KJSS filed a civil lawsuit regarding ownership of the entire 13.37 acre land in 1964. In 1968, the KJSS and the Shahi Idgah mosque management committee reached a compromise agreement, under which the land ownership would remain with the Sansthan but the management committee would run the mosque.

Lucknow-based advocate Ranjana Agnihotri and six others filed a plea in the lower court on September 24, 2020 for the mosque's removal but the civil judge rejected it as non-admissible, on grounds that none of the petitioners was from Mathura or had a valid stake in the matter. Undeterred, the petitioners filed a revision petition in the district court on October 16, 2020 in Mathura, which was accepted on May 19, 2022. Till now, 11 cases have been filed on different aspects of the dispute, but all want the mosque removed. Tanvir Ahmed, secretary and counsel of the managing committee of Shahi Idgah mosque, says, "We have received a copy of the order dated May 19.... Observations made by the court of the district judge while allowing the revision appear not to be legally tenable and will be challenged in the Allahabad High Court after proper discussion amongst stakeholders."

WHERE IT'S HEADED

The court will have to look into the revenue records and decide on the validity of the 1968 "compromise agreement" between the temple and mosque trusts.

–Prashant Srivastava

the "religious character" of any such place as it obtained on August 15, 1947, shall continue—4(2) says any pending suit or appeal seeking an alteration to it shall "abate". If those two mark out blanket no-go areas, Section 4(3)(a) allows an exception: heritage sites covered under the Ancient Monuments and Archaeological Sites and Remains (AMASR) Act, 1958.

How a series of contradictory court orders on Gyanvapi are now serving to chip away at that iron-clad constitutional protection afforded to a place of worship—opening a Pandora's box in the process, emboldening innumerable other would-be litigants—is instructive. The Gyanvapi suit was first filed in 1991: the petitioners made a blanket claim to title, seeking restoration of the medieval temple where the mosque currently stands. As his near-contemporary biography *Maasir-i-Alamgiri* records it, a temple was indeed demolished in 1669



HARI SHANKAR JAIN

Lawyer for the Gyanvapi petitioners

THE MOTIVATION BEHIND THE GYANVAPI SUIT

"All we want is to identify its [Gyanvapi's] religious character, whether it is a mosque or an old temple. Under Article 25, no law can take away anyone's fundamental right to worship"

THE PURPOSE OF RUNNING THE TEMPLE WAPSI MOVEMENT

"Our aim is to take back all the temples destroyed in the past. I had made a vow to do so in my childhood. When I was about 12, my mother told me about the atrocities invaders committed. She inspired me to counter the tyranny of history"

THE CURRENT GAMEPLAN

"We file a case only after completing all our research. Being advocates, we do everything through legal means. As the Waqf Act is anti-Hindu, we will request that it is changed. Whatever anti-Hindu laws remain, I will continue to plead with Parliament and the courts to get them repealed"

–as told to ***Manish Dixit***